

exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property. (*Brown v. Poway Unified School District* (1993) 4 Cal.4th 820, 829; *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.4th 379, 383.) The errant reference to an inapplicable statute in the 1AC is a trivial defect in the pleading. The 1AC states a proper cause of action against CALTRANS via section 835. The superfluous reference to the other statute is not grounds for demurrer.

Conclusion. CALTRANS's demurrer is overruled.

SHONNA LEIGH RIVES, SUI JURIS vs. FPI MANAGEMENT; ET AL.
Case No. CU25-07160

Plaintiff's Motion to Vacate and/or Modify Order Dismissing First Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows: Plaintiff's motion to vacate and/or modify the order dismissing Plaintiff's first amended complaint, filed on March 26, 2026, is granted. The Court finds that Plaintiff acted under mistake and/or excusable neglect within the meaning of CCP Section 473(b).

The second amended complaint filed on March 24, 2026 is deemed filed. Defendant shall file an Answer or other responsive pleading within 30 days of today's hearing date.

MERCED DIP LENDER LLC vs. DAVID C. SOWELS
Case No. CU26-03381

Defendant's Motion to Vacate Sister-State Judgment

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

Defendant's motion to set aside and vacate the sister state judgment is denied. Defendant has failed to present any legal analysis or evidentiary basis to warrant relief.
